

Opinion of the Court

208–209, ¶¶53, 54(b). According to the indictment, Trump used his campaign staff to effectuate the plan. See, *e. g.*, *id.*, at 210, 212–213, ¶¶55, 63. On the same day that the legitimate electors met in their respective jurisdictions to cast their votes, the indictment alleges that Trump’s “fraudulent electors convened sham proceedings in the seven targeted states to cast fraudulent electoral ballots” in his favor. *Id.*, at 214, ¶66. Those ballots “were mailed to the President of the Senate, the Archivist of the United States, and others.” *Ibid.*, ¶67.

At oral argument, Trump appeared to concede that at least some of these acts—those involving “private actors” who “helped implement a plan to submit fraudulent slates of presidential electors to obstruct the certification proceeding” at the direction of Trump and a co-conspirator—entail “private” conduct. Tr. of Oral Arg. 29–30. He later asserted, however, that asking “the chairwoman of the Republican National Committee . . . to gather electors” qualifies as official conduct because “the organization of alternate slates of electors is based on, for example, the historical example of President Grant as something that was done pursuant to and ancillary and preparatory to the exercise of” a core Presidential power. *Id.*, at 37; see also *id.*, at 25 (discussing the “historical precedent . . . of President Grant sending federal troops to Louisiana and Mississippi in 1876 to make sure that the Republican electors got certified in those two cases, which delivered the election to Rutherford B. Hayes”). He also argued that it is “[a]bsolutely an official act for the president to communicate with state officials on . . . the integrity of a federal election.” *Id.*, at 38. The Government disagreed, contending that this alleged conduct does not qualify as “official conduct” but as “campaign conduct.” *Id.*, at 124–125.

On Trump’s view, the alleged conduct qualifies as official because it was undertaken to ensure the integrity and proper administration of the federal election. Of course, the